

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 27, 2026
8:30 AM/1:30 PM

13. RACHAEL OSBORN V. MATTHEW OSBORN

23FL0134

Respondent filed a Request for Order (RFO) seeking a modification of the child custody and parenting plan orders on June 5, 2026. The parties were referred to Child Custody Recommending Counseling (CCRC) for an appointment on July 17, 2026, and a review hearing on August 27, 2026. Petitioner was personally served with some but not all the required documents. Petitioner was not served with the referral to CCRC or the Notice of Tentative Ruling.

Only Respondent appeared at the CCRC appointment. A single parent report with no recommendations was prepared on July 17, 2026, and mailed to the parties the same day.

Petitioner filed a Responsive Declaration on August 11, 2026. It was mail served on Respondent on August 11th. Petitioner requests the court drop, deny, or dismiss the RFO due to procedural deficiencies.

The court drops the matter from calendar due to the lack of proper service as well as the procedural deficiencies, specifically the RFO was not signed.

All prior orders remain in full force and effect.

TENTATIVE RULING #13: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE AS WELL AS THE PROCEDURAL DEFICIENCIES, SPECIFICALLY THE RFO WAS NOT SIGNED. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07

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14. ADAM STOCKELAND V. TANYA STOCKELAND

24FL0319

Respondent filed a Request for Order (RFO) seeking reimbursement of expenses for the parties' children's expenses. Petitioner was personally served with some, but not all the required documents on July 5, 2026. Respondent is seeking reimbursement for what she asserts is Petitioner's share of the shared expenses for the minor children.

Petitioner filed a Responsive Declaration on August 12, 2026. It was served on the same day. Petitioner does not raise the issue in the defect in service; therefore, the court deems it to be waived. Petitioner opposes the request, as the expenses were not agreed upon as required by the parties' judgment.

The court finds it will need to take testimony on this matter. Parties are ordered to appear for the hearing.

TENTATIVE RULING #14: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING TO SELECT MANDATORY SETTLEMENT CONFERENCE (MSC) AND TRIAL DATES.